

24PR00658 Estate of Ryan Douglas Hamilton

County: sonoma

Division: Probate

Hearing date: 2026-07-02

Motion: Demurrer to Petition for Instructions

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Estate of Ryan Douglas Hamilton

24PR00658

Demurrer to Petition for Instructions

Tentative Ruling: The judicial officer presiding in Department 12 this week, the Honorable Rene A. Chouteau, was previously disqualified in this matter per the Order Granting Preemptory Challenge filed in this case on August 30, 2024. However, the Court does not consider the instant demurrer and the underlying petition to be a continuation of the prior proceedings for which it was disqualified, because they do not involve substantially the same issues or matters necessarily relevant and material to the issues in the prior petitions. *Stevens v SC* (2022) 96Cal.4 54. See *Maas v. Superior Court* (2016) 1 Cal.5th 962, 979. Therefore, the Court will hear the demurrer. That said, if any party wishes to exercise any right to disqualify the Court, they may do so, as allowed by law.

The demurrer is SUSTAINED. Kathleen Mullins Henderson, Esq. (Ms. Henderson) does not have standing to pursue this petition. The petition also fails to state a valid cause of action because it purports to be a petition for instructions, but such a petition is for the purpose of instructing a personal representative, not instructing a third party such as the petitioner. Leave to amend is DENIED. The movant's requests for judicial notice are GRANTED subject to the qualifications set forth below. The movant's request for sanctions is DENIED.

I. The petitioner does not have standing

Probate proceedings are statutory in nature, and standing is determined by the applicable statute. *Estate of Tarlow* (2025) 109 Cal.App.5th 124, 132, review filed (Apr. 8, 2025). The petition does not indicate the applicable statute under which standing is to be determined. The movant asserts the petition is a petition for instructions pursuant to California Probate Code (Prob C) §9611(a). The Court finds this to be a correct characterization because the title of the petition indicates that it is a petition for instructions, and it seeks instructions. A petition for instructions in an estate case may only be brought by the executor or administrator. *In re Webb's Estate* (1969) 269 Cal.App.2d 172, 174. The petitioner is not the executor or administrator here, so she does not have standing to petition the Court under Prob C §9611(a).

Even if the petition could be characterized as a Prob C §9613(a) petition, a Prob C §9614(a) petition, or even a Prob C §850(a)(2)(D) petition, the petitioner is not an "interested person" and has no standing. Courts have traditionally characterized an interested person as someone who could be financially affected by the probate proceedings. *Conservatorship of Anne S.* (2025) 112 Cal.App.5th 1021, 1028. A person must have a property right in or claim against a trust estate or the estate of a decedent which may be affected by the proceeding to be an interested person under Prob C §48(a)(1). *Estate of Sobol* (2014) 225 Cal.App.4th 771, 782. Ms. Henderson is not an interested person under Prob C §48(a)(1) because she has no property right in or claim against the trust estate. She is the former attorney of the decedent. She is not, by this petition, claiming that she is owed money from the estate or that she has any other interest in the estate.

res. She is in possession of documents that are potentially estate property, but this does not make her a person interested in the estate.

II. The petition fails to state a cause of action

The petition purports to be a petition for instructions, but such a petition is for the purpose of instructing a personal representative, not instructing a third party such as the petitioner. Prob C §§9611, 9613, and 9614 all provide for orders directed at a personal representative, not someone such as the petitioner. The petition asks the Court for instructions to the petitioner, not for a transfer of estate property, so the petition does not implicate Prob C §850(a)(2)(D). The petition fails to state any viable cause of action.

III. Leave to amend

Leave to amend should be granted where there is a reasonable possibility that its inadequacy can be cured by amendment. *Loeffler v. Target Corp.* (2014) 58 Cal.4th 1081, 1100. Here, there is no reasonable possibility that the petitioner can amend the petition to cure the aforementioned inadequacies. A petition for instructions cannot be used to instruct the petitioner in the way she seeks, as such a petition is only used to instruct a personal representative. Also, the petitioner is not an “interested person” with respect to this estate and thus would have no standing to bring other related causes of action (See e.g. Prob C §§9613(a), 9614(a), and 850(a)(2)(D).)

IV. Requests for judicial notice

The movant’s requests for judicial notice are GRANTED subject to the following qualifications. For those documents that contain hearsay or otherwise contain disputable facts, even those that are part of the court record, the existence of those documents is noticed but the truthfulness and proper interpretation of the contents of the documents are not noticed. See *Day v. Sharp* (1975) 50 Cal. App. 3d 904, 914.

V. Sanctions

California Code of Civil Procedure §430.41 contains no provision that authorizes fee shifting. *Amezcuca v. Superior Court* (2026) 120 Cal.App.5th 116. Also, local rule 5.4 does not apply to probate proceedings, so a violation of that rule in the context of this proceeding does not justify sanctions under local rule 1.4. With respect to local rule 6.2(F), the petitioner’s declaration filed June 18, 2026 indicates a meet and confer did occur on or about April 30th or May 1st 2026, so the Court does not find the petitioner failed to comply with local rule 6.2.F.

Counsel for the moving party is directed to lodge an updated proposed order that conforms to this ruling. The Court will sign and file a written order after hearing.